



Fines, Fees, and Families: Monetary Sanctions As Stigmatized Intergenerational Exchange

Veronica L. Horowitz^a, Ryan P. Larson^b, Robert Stewart^c, and Christopher Uggen^d

^aDepartment of Sociology, University at Buffalo, Buffalo, USA; ^bDepartment of Criminal Justice and Forensic Sciences, Hamline University, Saint Paul, USA; ^cDepartment of Criminology, University of Maryland, Minneapolis, USA; ^dDepartment of Sociology, University of Minnesota, Minneapolis, USA

ABSTRACT

This study examines the intergenerational consequences of court-imposed monetary sanctions for parents and children. Research on punishment and families has generally focused on imprisonment, yet monetary sanctions are far more commonly imposed. We extend research on intergenerational financial exchanges to conceptualize payment of monetary sanctions as *stigmatized transfers*, analyzing 70 semi-structured interviews with debt-holders in Minnesota. Adult children reported perceiving anger and financial strain from family members who provide assistance. Those with minor children expressed hopelessness, stress, and financial strain, as they prioritized basic needs over meeting their outstanding financial obligations. We conclude by discussing the implications of these intergenerational impacts for research, law, and policy.

KEYWORDS

Intergenerational exchanges; monetary sanctions; intergenerational transfers; legal financial obligations (LFOs)

This article draws attention to an understudied aspect of punishment and family life: the intergenerational reverberations of criminal legal financial obligations (LFOs), or monetary sanctions, beyond the individuals receiving them. Although research has highlighted how criminal punishment may harm families as well as individuals, these impacts have historically focused on incarceration. Yet far more families are subject to monetary sanctions – a form of criminal punishment often considered relatively “lenient” – than incarceration, and such families often have fewer resources (Wakefield and Uggen 2010). We therefore consider monetary sanctions in the context of theories of intergenerational relationships and financial transfers (Swartz 2009; Swartz et al. 2011; Wiemers and Park 2021).

Research has long examined how resources are transferred across generations (Mitnik, Bryant, and Weber 2019; O'Connor 2009; Sharkey 2008), though this work has generally focused on normalized transfers (e.g., help with education or housing expenses) rather than stigmatized transfers. For example, many parents provide “safety nets and scaffolding” (Swartz et al. 2011) when their adult children experience negative life events such as divorce, serious illness, or death of a spouse (Smits, Van Gaalen, and Mulder 2010), though these circumstances are less stigmatizing than criminal punishment. Drawing on descriptive interview data with people who owe monetary sanctions, we show how potentially stigmatized intergenerational exchanges, through payment of court-imposed debts, provide needed support but may be consequential for children and parents. We focus on the tri-

CONTACT Veronica L. Horowitz ✉ vhorowitz@buffalo.edu Department of Sociology, University at Buffalo, SUNY, 430 Park Hall, Buffalo, NY 14260.

Supplemental data for this article can be accessed online at <https://doi.org/10.1080/00380253.2024.2333815>.

© 2024 MSS

generational impact of monetary sanctions; that is, from adult children onto their parents *and* from adults onto minor children in their care. For the parents of adults sentenced to pay monetary sanctions, sanctions put significant financial strain on family members (see also, Boches et al. 2022).

Our work expands extant literature on LFOs by studying a new site, Minnesota, and considering potentially stigmatized transfers in the context of multiple generations. Moreover, we present evidence of emotional consequences: anger exhibited by parents providing support to their adult children. “Volitional” models suggest that provision of support depends, in part, on the quality of parent-child relationships (Lye 1996; Van Gaalen and Dykstra 2006), particularly for mother-child relationships (Swartz et al. 2011). We speculate that the stigma and secrecy around this form of intergenerational exchange, coupled with financial precarity, may underpin the frustration and anger our participants observed in their parents when receiving assistance with LFOs. Moreover, through these spillover effects, families who are already marginalized (such as those who are poor, those who embody racialized legal statuses, etc.) may experience further disadvantages such as poorer physical and mental health (Asad and Clair 2018).

We identify several mechanisms by which monetary sanctions may disproportionately harm marginalized families. First, criminal legal debt reduces the resources available to families. Second, this debt may exact an emotional toll. Parents consistently attributed feelings of hopelessness and discouragement to their heavy financial debts. The emotional consequences of monetary sanctions on adults caring for minor children are distinct, differing from those reported as developing when young adults with legal debts receive financial assistance from their parents. Our findings also show how unpaid LFOs may have the counterproductive effect of increasing family stress, tension, and generating negative emotions while producing few identifiable benefits to victims and the larger society.

Punishment and Families

Considering the extraordinary scale and scope of U.S. criminal punishment, researchers are documenting its many ripple effects on families. To date, the vast majority of these studies have focused on *incarceration*, describing deleterious impacts on the partners of people imprisoned (Comfort 2009; Geller and Franklin 2014; Turney, Schnittker, and Wildeman 2012), their children (Cochran, Siennick, and Mears 2018; Johnson and Easterling 2012; Poehlmann 2005; Wakefield and Wildeman 2013), and their parents (Green et al. 2006; Gueta 2018; Sirois 2020). We also know that the distribution of incarceration within and across families is unequal, meaning there are racialized, classed, and gendered variations in the likelihood that some groups will experience the incarceration of multiple family members simultaneously or over the life course (Lee et al. 2015; Yi 2023).

Yet most people under formal legal control are serving community sentences (Phelps 2017). However, the *most common* punishments imposed are monetary sanctions (Harris 2016; Martin et al. 2018), which are unique in an important respect: unlike other criminal legal sanctions, they can be entirely fulfilled by someone other than the person sentenced (Boches et al. 2022; O'Malley 2013). Expanding research on the “collateral consequences” of punishment or spillover effects on families reveals ways that collateral consequences operate among families (Chesney-Lind and Mauer 2003; Ewald and Uggen 2012; Kirk and Wakefield 2018). Our findings suggest that while

considered relatively less punitive, unaffordable legal debts may have deleterious impacts on both the parents and children of those ordered to pay them, both emotionally and materially. Moreover, we find these sanctions hit the most disadvantaged families the hardest.

Monetary Sanctions

“Monetary sanction” is an umbrella term that includes myriad financial penalties imposed through involvement with the criminal legal system, including fines, fees, surcharges, restitution, and related sanctions. Fines are considered a punishment, which are typically imposed by a judge at sentencing. They can be the sole consequence or accompany incarceration or probation sentences. Surcharges and fees are imposed to generate revenue or to recoup service costs (e.g., electronic home monitoring, drug testing), which has increasingly been described as a predatory criminal justice practice (Page and Soss 2021). Fees are often tied to probation, electronic home monitoring, drug testing, and other court-mandated programs. In some cases, fees are assessed to offset confinement costs. These are typically called “pay-for-stay” charges (Fernandes et al. 2019; Friedman and Pattillo 2019; Harris, Smith, and Obara 2019; Martin 2020; Shannon et al. 2020), in contrast to “pay-or-stay” charges in which individuals are incarcerated for failing to pay monetary sanctions (Fernandes et al. 2019). Restitution is distinctive in that it is typically paid to victims or victim support organizations, often considered a restorative sanction (Martin et al. 2018). These financial obligations can be imposed in addition to or instead of custodial (prison, jail) or non-custodial (e.g., probation) sentences. Further, some monetary sanctions (e.g., home monitoring and pretrial drug testing fees) are levied on individuals who are never convicted of an offense.

Even basic descriptive information, such as average sanctions imposed, time to pay, and debt accrued, is difficult to obtain in many jurisdictions. Nonetheless, wide variation in the application and imposition of monetary sanctions is evident. For example, Harris et al. (2017) compared statutorily prescribed ranges for a first-time “driving with a suspended license” offense in 9 states. In California, a defendant might expect total monetary sanctions (the sum of fines, fees, surcharges, and other charges) from \$1,310–\$3,480. But in North Carolina or Minnesota (the site of the current study), a similarly situated defendant with the same offense might expect a much smaller financial penalty (\$188–\$388 and \$279.50–289.50, respectively).

More affluent people can often pay monetary sanctions quickly with limited impact on their household budget. Those unable to immediately do so, however, must often pay a premium through “poverty penalties” (Harris 2016), such as compounding interest, late fees, license suspension fees, extended supervision fees, and, in some jurisdictions, criminal consequences. For less affluent people, it is unclear how families prioritize these legal debts relative to other needs and obligations. Further, a general lack of accessible information regarding total balances owed, how to obtain payment deadline extensions, and other difficulties make navigating the monetary sanctions system cumbersome and confusing. In interview studies, people subject to sanctions often express confusion about the legal process in general and monetary sanctions specifically (Spencer-Suarez and Martin 2017).

Effects on Families

Although we know far less about the ripple effects of non-custodial sanctions, such entanglements can reverberate to affect family members. For instance, Ewald and Uggen (2012) conceptualize that the termination of parental rights is a collateral sanction faced by parents. Turney and Sugie (2021) show how parental arrest affects family stress and disruption and worsens material hardship. Care for loved ones is also an important mechanism linking bail costs to family members. Cash bail is distinct from monetary sanctions in that it is not technically considered a punishment and is ordered prior to conviction, but its gendered and racialized familial consequences may be similar (Page 2022; Page, Piehowski, and Soss 2019). In a rich participant ethnography as a bail agent, Page (2022) found female relatives were targeted for financial extraction. “When the defendant calls, get mom’s number, get grandma’s number, get a wife,” as bail companies believed these women, despite their own financial hardship, would care enough to bail out the defendant. It is thus reasonable to expect that monetary sanctions will affect family members. A multistate study of organizations found that when people are sentenced to prison, responsibility for paying conviction-related costs is usually shouldered by female family members (DeVuno-Powell et al. 2015). Recent surveys of justice-impacted residents in Illinois (Gleicher and DeLong 2018) and Alabama (Cook 2014) found that most respondents borrow money from family or friends to pay their legal debts. Likewise, Giuffre (2023) shows that Missouri men with outstanding LFOs rely heavily on family and friends for financial assistance, but this provision can restructure relationships. In some cases, men engaged in “relational work” to negotiate help. In others, those who aided then used their support as a justification to assert managerial control over these men. Relatedly, a Michigan study leveraged a DUI fee policy change to assess the family impact of monetary sanctions (Mueller-Smith et al. forthcoming). Amongst a subset of individuals at-risk for recidivism, the total earnings of their romantic partners increased after the fee increased, suggesting these partners may have helped shoulder the fees (Mueller-Smith et al. forthcoming).

In a landmark study, Harris (2016:65) used firsthand, qualitative accounts to show how legal debt can undermine efforts to establish a stable family life and secure future. Similarly focused recent work analyzed interviews with court personnel and people sentenced to monetary sanctions in Georgia and Missouri to explore their impacts on families (Boches et al. 2022). Consistent with results from survey studies and Giuffre’s (2023) qualitative work, Boches et al. (2022) found family members frequently provide financial support for loved ones with legal debts. Most often this support was provided by mothers, rather than fathers or romantic partners, coming at a cost to their own wellbeing and economic stability. For example, some providing financial assistance “cashed out” retirement funds or pawned valuable items. Boches et al. (2022) maintain that court actors view romantic partners and family members as a manipulable funding source, coercing them into paying the financial penalties of their loved ones and imposing symbiotic harms. We similarly emphasize how monetary sanctions affect family members, but situate our analysis in the context of other forms of intergenerational exchange (Swartz 2009; Swartz et al. 2011). To do so, we conceptualize financial exchanges for monetary sanctions as potentially *stigmatized* transfers, relative to parental assistance for expenses such as college costs, weddings, or housing.

Intergenerational Transfers and Relationships

Research on socioeconomic status and families has firmly established that social class is an intergenerational phenomenon as both poverty and wealth are transmitted across generations (Blau and Duncan 1967; Chetty et al. 2014; Mitnik, Bryant, and Weber 2019; Napolitano 2015; O'Connor 2009; Sharkey 2008). Recent work on intergenerational transfers among U.S. families indicates that the financial independence that once characterized young adulthood is shifting and that many adults continue to rely on the financial support of their parents well into their late twenties (Bea and Yi 2019; Sironi and Furstenberg 2012). Although parental support generally declines as children enter their thirties, intergenerational exchanges continue to occur throughout the life course (Swartz et al. 2011; Wiemers and Park 2021).

Transfers from parents to their children have been consistently documented, but the extent to which such support is contingent on parental resources, behaviors of adult children, or the cause of financial need remains unclear. Research on intergenerational transfers has emphasized evolutionary theories (based on genetic relations), exchange theories (based on norms of reciprocity or solidarity), or some combination of the two (Clark and Kenney 2010). In each case the purpose of the transfers is relevant, such that parents may be especially motivated to provide financial assistance that enhances the fertility of their adult children (e.g., weddings and down payments on first homes) or provides adult children with the financial means to reciprocate care for their parents at later ages (e.g., education and vocational training) (Wiemers and Park 2021).

Some scholarship indicates that parental transfers to adult children are also tied to needs and exigencies, such as income losses following divorce (Leopold and Schneider 2011; Swartz et al. 2011), and that these transfers may be diluted by siblings in low-income families (Roksa 2019). But as Swartz (2008:22) asks, to what extent is support tied to good behavior, or “conditional not only on the purpose of the help, but also on whether young people adhere to parental and societal behavioral expectations. . . on young adult behavior or compliance?” Swartz (2008) suggests that parents may view paying an adult child’s criminal legal debt differently than paying for an adult child’s wedding or college degree. Unlike more normative transfers, family members may be uncomfortable speaking to friends about paying for an adult child’s probation or interlock ignition fees. Moreover, paying for court debt could also cause frustration or tension. Our study provides concrete examples of how such tension and stress may arise in the context of even small transfers. Further, although intergenerational financial transfers are generally given willingly, this giving may be more likely to feel coercive in the shadow of criminal sanctions.

Family Adaptations in Marginalized Communities

Research shows that children, especially Black children, and those from lower socioeconomic backgrounds, often live in extended family households (Cross 2018), and that Black and other marginalized families support each other through expansive kinship networks and reciprocity, supporting each other through cooperative resource and service exchanges (Stack 1997). However, with respect to monetary sanctions, Giuffre (2023) suggests that reciprocity may not be practicable. Further, children in these families may face “adultification,” taking on adult responsibilities prematurely (Burton 2007). Due to this trend toward

the larger and more diffuse family kinship networks among marginalized communities, we might expect to see greater reliance on extended networks for support in our sample. We also might anticipate our interviewees receiving non-monetary forms of support from their family networks.

Intergenerational Transmissions of Financial Punishments?

Meanwhile, we must consider that just as the hardships of familial incarceration are compounded by multiple family members being incarcerated (Lee and Wildeman 2021),¹ it seems reasonable that the adversities on families caused by monetary sanctions might impact individual families through multiple peoples' sanctioning *or* when imposed on a single family member multiple times. As discussed, studies on the impact of incarceration indicate that punishment can and does negatively impact the imprisoned person's children and parents. We also know that many parents continue to provide financial support for adult children, yet the extent and consequences of such transfers for those subject to monetary sanctions remains unknown. Given the potentially stigmatizing nature of criminal justice debts, we anticipate that intergenerational transfers may generate negative emotions, particularly for economically marginalized families who cannot immediately pay such debts.

The Current Study

This study examines Minnesota data collected as part of a collaborative multistate study of monetary sanctions (see Harris, Pattillo, and Sykes (2022)). We conducted semi-structured interviews with 70 individuals who had been sentenced to pay monetary sanctions. We recruited participants between March and September of 2017 through Craigslist, flyers, local probation offices, and drug treatment facilities in six Minnesota counties spanning urban, suburban, and rural areas of the state. Although our interview guide was not designed to focus on intergenerational transfers, our participants consistently invoked them in our discussions. These themes were pervasive and emerged organically from interview questions on the lived experience of monetary sanctions.

Analytic Procedures

Our interviews were transcribed and imported into NVivo for coding and analysis. The initial coding of our data was done in collaboration with a large team of researchers from the other sites involved in this study. The first phase of coding used a modified grounded theory approach (Lofland et al. 2006) with both inductive and deductive codes identified in tandem in discussions with researchers from all study sites. Deductive codes were developed from previous empirical research on LFOs, including that of the research team (i.e. Harris 2016; Harris et al. 2017). Inductive codes emerged from the interviews themselves as well as from courtroom observations. Due to the size and number of persons involved in this first phase of coding, many of the codes were intentionally broad, meant to capture key elements of the interviews that would be analyzed in greater depth in later stages. Once consensus was reached on an initial codebook, two rounds of preliminary coding were conducted on a small sample of

interviews. In this preliminary stage a researcher from each of the eight sites involved in the study coded the same interviews to clarify and validate the coding scheme, modifying the scheme accordingly, before it was finalized. Once conceptual agreement was reached the coding scheme was implemented. Each interview in our sample was coded by two researchers, a researcher from our site and a researcher from another site. For a more detailed discussion of this coding process in the larger study see Harris, Pattillo, and Sykes (2022).

In the second analytic phase, the Minnesota team drilled down on unexpectedly prominent (or absent) themes in the data. The first author ran queries in NVivo that were prominent in the majority of interviews of both men and women. One code stood out from this analysis: a descriptive code titled “personal networks” (“general or specific conversations about the respondent’s personal network or lack of personal network such as their family members, friends . . .”), which we selected for further exploration. This code was present in 66 of our 70 interviews (31 women and 35 men). Two members of the Minnesota team examined all of the personal-network coded segments of defendant interviews with the aim of uncovering more nuanced and potentially gendered patterns. This more focused phase of coding (Richards 2009) revealed prominent patterns that speak to the intergenerational impacts of monetary sanctions that we separate and present as two major themes; receiving parental support in adulthood and financial strain on children/families with young children. Only three of our participants received support from a family member who was not a parent or partner.

Descriptives

Table 1 presents basic descriptive information about the 70 interview participants, highlighting their economic precarity. Most participants earned less than \$1,500 per month, about half were not employed, and over one-third had experienced homelessness. About 13% had not completed high school, and another 25% had achieved a high school diploma or GED. They ranged from 22 to 59 in age (with a mean of 36), and a little over half identified as men. Most of our participants were white (60%), about 16% identified as biracial, 11% as Black, and 6% as Native American. These patterns reflect the racial composition of Minnesota and its racial disparities in punishment (Frase 2019).²

Parenthood was not initially a focus of our study, making the heavy presence of such discussions in our interviews a powerful revelation. Although we did not consistently inquire about children’s ages, we asked questions regarding the scale and scope of financial responsibility for children. Over half (56%) of our participants were currently helping to support children, and those doing so had primary custody of two children on average. Those who were not currently caring for minor children could have been doing so in the past (such as before losing primary custody or before their children reached adulthood).

Of our 70 participants, 56 had been convicted of a felony and 61 had been convicted of a misdemeanor (52 had been convicted of both). Although there was a considerable range in the recency of their criminal justice encounters, 34% of those with felonies and 33% of those with misdemeanors had been convicted within the last 2 years. About 70% of our participants’ felony convictions and 66% of their misdemeanor convictions occurred within the past 7 years.

Table 1. Descriptive statistics of participants ($N = 70$).

Age				
Gender	Mean	36	<i>Been Homeless</i>	
	Range	22–59	Yes	60.0%
			No	35.7%
			Unknown	4.3%
Race	Women	42.9%	<i>Caring for Minor children</i>	
	Men	54.3%	Yes	55.7%
	Unknown	2.9%	No	44.3%
			<i>Number of Minor Children</i>	
Educational Attainment	Black	11.4%	Mean	2
	White	60.0%	Range	1–4+
	Native American	5.7%	<i>Year of Last Felony</i>	
	Biracial	15.7%	Mean	2013
Monthly Income	Other	1.4%	Range	1992–2017
	Unknown	5.7%	Not Applicable	20.0%
	Some high school	12.9%	2000 or earlier	4.0%
	High school/GED	25.7%	2001–2005	3.0%
Employed	Some college (includes AA)	31.4%	2006–2010	6.0%
	College graduate (Bachelor's)	22.9%	2011–2015	33.0%
	Unknown	7.1%	2016 or later	34.0%
			<i>Year of Last Midemeanor</i>	
Employed	Less than \$500	41.4%	Mean	2013
	\$501–1,500	18.6%	Range	1999–2017
	\$1,501–3,000	24.3%	Not Applicable	12.9%
	More than \$3,000	12.9%	2000 or earlier	4.3%
Employed	Unknown	2.9%	2001–2005	5.7%
	Yes	48.6%	2006–2010	11.4%
	No	48.6%	2011–2015	32.9%
	Unknown	2.9%	2016 or later	32.9%

Interviews were conducted between March and September of 2017.

Results

We organize our results in two sections, which are separated for analytical clarity, but are not mutually exclusive. The first section focuses on adult participants who reported perceptions of strain, stress, and hostility from the parents who assisted them with legal debts. The second section focuses on a similar but distinct pattern among persons caring for minor children, who described how debts affected their ability to provide for their families and created financial strain and feelings of hopelessness. We posit that these emotional responses, especially from parents helping adult children pay their monetary sanctions, may be directly related to the stigmatizing nature of these debts.

Receiving Parental Support in Adulthood

Participants reported receiving financial assistance from their parents as young adults and at later ages. Consistent with other studies, many came from impoverished families, such that parental support likely came at some cost to parents. We often observed this pattern with women. For instance, Lisa, a 31-year-old Black mother responsible for four children, estimated amassing over \$6,000 of criminal legal debt throughout her life. Although her father agreed to provide some financial assistance, she explained how angry he was about it:

Lisa: Yes. My dad has chipped in a couple times This last one he paid \$400 for probation up in [Name] County. No, the restitution. The restitution.

Interviewer: . . . how do you think he feels about that?

Lisa: He's angry. He's pissed because he knows I don't have no way to pay it, but he also knows that I won't be able to move on if it's not paid. . . . That's his money and he worked for it . . . I know that I did something wrong and stuff, but the thing is if it was more feasible, I could pay. If the payment plan was set up so we could pay, that would be great, but it's really not. It's not set up to be feasible . . . It's a kind of a sad system actually, but I guess it makes America go around.

Lisa's comments illustrate a degree of legal cynicism as well as family strain regarding her monetary sanctions (Kirk and Matsuda 2011). In recounting the support her father provided, Lisa initially mixes up probation and restitution. Although the distinction between them is philosophically and practically significant,³ she experiences them both as a single, insurmountable burden.

Like Lisa, 27-year-old Margerie, a white woman, felt her financial burdens were so great that she would never be able to pay them off, "It's made me not want to get my taxes, not want to get a legitimate job that I have to pay taxes on because it's like, what's the point? You guys are going to take the majority of it anyway?" Margerie described paying about \$4,000 in court-imposed debt and having over \$18,000 seized. Also, like Lisa, her parents provided support but "absolutely hated" doing so. When asked how often they helped, Margerie explained:

Margerie: Whenever I ask them to. A couple hundred bucks, probably, in total. No, actually, probably more – close to a thousand. I just thought about all the money that I had put on my account when I was in jail that they [the jail] took 60% of . . .

Interviewer: What is your sense of how your parents feel about providing financial assistance?

Margerie: They hate it. They absolutely hate it. They'll do it because they want to see me succeed in life, but they hate it.

In both Lisa and Margerie's interviews it was difficult to determine exactly where their parents' anger about helping with their monetary sanctions was directed. Nonetheless, their parents' anger about paying *these* debts was palpable, difficult to discuss. This anger may be a unique feature of these stigmatized exchanges. Both participants described how their fathers provided other forms of support (work, community service, and housing) during their interviews with no indication of anger or hostility around these types of parental exchanges. When Lisa had court-ordered community service obligations, her father encouraged her to complete community service hours at his gym:

My dad owned a boxing gym . . . I worked in his gym, and I'd do that for like three hours a day, two to three hours depending on how much time I had, cleaning up the lockers, cleaning up the gym after everybody was said and done, kind of like janitorial work. Then he'd sign off on my hours . . .

Margerie, in treatment at the time of her interview, said her father's support was central to her future plans, he was going to provide her with a place to live and, as she explained "I will be [employed] in the next month when I graduate. . . . I can work for my dad's company for now." In addition to anger and frustration, interviewees worried about

imposing financial strain on their parents. Sharon, a 26-year-old white woman who accrued \$30,000 of criminal legal debt, detailed this financial burden:

Sharon: My Mom emptied her 401K and her life savings to help me with my . . . all of it.

Interviewer: Yeah. So, what is your sense of how they feel about providing assistance?

Sharon: They just wanted to help me . . . my parents were having to donate plasma just so that they could get by, because of everything that they paid out for me. Granted, there was other debt that they had . . . like, raising four girls, and all of that. Like, they had all of that other debt and whatever. But when they put everything for my attorney, and then for bailing me out, and paying court fines and fees here and there. And, paying for the blow machine⁴ [alcohol breathalyzer], and all of those things . . . like, it strapped them.

Sharon's statement illustrates the financial precarity of the parents of those sentenced to monetary sanctions. Her parents did not have the means to provide financial assistance, had their own outstanding debts from raising four children, and resorted to donating plasma and emptying their retirement savings to help their daughter. Like Lisa, the distinctions between types of monetary sanctions blurred together for Sharon, and she experienced them as a series of costs that neither she nor her family could afford to pay.

Mitchell, a 39-year-old white man supporting three children, estimated his cumulative court costs and restitution totaled over six figures. He explained that his father provided financial assistance when able but doing so generated financial strain. "They say to me that, 'It's not a problem. I'll help with what I can.' But I'm not stupid. It puts a strain." Likewise, Christine, a 54-year-old white woman who estimated she owed \$10,000 of legal debt, said her parents were unhappy about providing financial support, and doing so caused financial hardship. Christine's mother was not explicit about the strain, but Christine read between the lines when her mother would request to be reimbursed for small amounts of money.

I think it did affect her. Yeah. Because there would be times when she'd call me and say "Christine can you pay me some money back? It's so and so's birthday" or . . . it did affect my mom. I think she didn't want me to feel real bad but she would call me and say stuff like, "It would be nice if you could pay me even \$25 a month or something like that." I would do that for a while and then that would drop off and my addiction would kick in . . .

In sum, our adult interviewees often received parental assistance in paying their monetary sanctions. Their assessments of how their parents felt suggested that the help they received with legal financial obligations was accompanied by anger and strain. Nevertheless, many continued to accept this support because they saw few viable options to repaying legal debts they perceived as insurmountable or overwhelming.

We also saw some preliminary racial distinctions in the way that our interviewees received parental support, with white participants describing highly structured assistance. For instance, Nate, a 26-year-old white man explained how his mother assisted him:

Nate: Well, my mom actually helps me out with that a lot. I wish she was here to answer some of these questions because she would help out a lot.

Interviewer: Does she keep track of it?

Nate: Yeah, she does. Yeah, she helps me keep track of it.

Similarly, rather than having her court-ordered monetary sanctions payments automatically deducted from her income, Natalie, a 38-year-old white woman named said simply, “My dad is doing [e.g., paying] it for me.”

In contrast, but consistent with what we might expect given racial income inequality, we observed greater poverty among respondents of color, especially Black participants. For instance, Jeff, a 26-year-old biracial man, attributed the absence of family support to his parents’ lack of resources: “Nope. Family that I have, you know, they’re poorer than I am right now, actually. A lot of them are on welfare and some of them just don’t work.”

Financial Strain on Children/Families with Young Children

Over half of our interviewees were financially responsible for minor children (including several quoted in the previous section). Like others impacted by the carceral system, many were economically disadvantaged prior to receiving monetary sanctions, which worsened their financial precarity. Just as LFOs may spread financial strain from convicted adult children onto aging parents, these debts may also spread financial strain from convicted parents to minor children in their care.

Many interviewees viewed the financial burdens of monetary sanctions as insurmountable. The weight of these obligations, combined with caregiving responsibilities and struggles with the legal system, were demoralizing for Jared, a 30-year-old biracial father of three with over \$15,000 of monetary sanctions. Bleakly, Jared described his situation:

A big hole you get yourself into and cannot get out. . . My whole life I’ve been dealing with fines and the struggle with the system . . . All I do is work and come home. That’s it. I don’t go out, drink, don’t do any of that . . . It plays a big role in your future too. Everything that you do in your past. You can’t get housing, you can’t, you know, it just sucks all around. So, if you’re trying to raise a family and you got all this . . .

Jared’s statement emphasizes how his past decisions haunted and hindered his future. He describes having to isolate himself from others, living a life consisting of only work, with barriers to housing and other opportunities. When Sally, a 36-year-old white woman with over \$10,000 of criminal legal debt, considered her monetary sanctions, expenses, potential earnings, and caretaking obligations, she described retreating from the labor market, a form of system avoidance, due to feeling similarly discouraged:

I’m not working, I would be scared to file taxes probably right now because it probably, I don’t know, I just wouldn’t do it . . . ‘Cause it’s discouraging. It’s like Okay, if I go get a minimum wage job, they’re gonna take some of my money, which *I have three kids to support*. Let’s say I make, whatever, \$1,000 a month and my rent’s like six, \$700, I gotta worry about that and then *I only have \$300 more to take care of my kids* . . . That doesn’t include my electricity, my bills, my groceries and stuff. It’s discouraging, it is. Then, just to know that I’ve sat in jail so long that I don’t feel that I should have to pay a fine or pay them money on top of it. . . it’s ridiculous. I don’t know how they even have the right to charge you to go to jail.

Sally was distressed by her struggling as a mother of three, unable to pay her legal debts and provide food and housing for her children, given her minimum-wage job and additional financial charges for her time in jail. In contrast to other participants, the different types of monetary sanctions were meaningfully distinct for Sally. She was upset that in addition to

her other financial penalties and jail sentence she was charged a fee for each day she spent in jail. Sally felt this was outrageous and futile, as she could not afford food and electricity even without this debt. Sally's sense of never being able to make ends meet was common among our interviewees as they prioritized their expenses, with monetary sanctions taking a backseat to meeting basic needs. Sally also described how the stigma of bad credit, directly stemming from her legal debts, resulted in being denied credit cards and housing, explaining "I went to apply for a duplex, and I was told, 'No,' because of my credit score and I've never had credit cards in my name since I've been an adult."

For many interviewees with children, monetary sanctions were another in a long list of overwhelming financial pressures. Because they stem from the criminal legal system, however, monetary sanctions and the associated debt may be particularly stressful and stigmatizing – a form of "piling on" that may exacerbate other strains. Later in her interview, Sally explained:

[W]hen I drive I'm like, "Oh my God, I can only drive certain hours and I have to make sure I drive right because I don't have a license." But I think for me to get my license back is like \$4,200, maybe \$4,600. I don't have that. That's like buying a car. Where am I gonna come up with that kind of money? . . . It's affected my life as far as the decisions, and it puts a blockage in front of me being able to move on, getting my license or with my credit, building my credit . . .

In contrast to many states, Minnesota prohibits incarceration as a consequence of nonpayment, so those unable to pay are not routinely incarcerated on this basis (Harris et al. 2017). Despite this, we observed some evidence of system avoidance (Brayne 2014) resulting from participants feeling their debts were insurmountable. Yet the most prominent consequence of nonpayment described in our interviews was driver's license suspension. For some, like Sally, license suspension increased stress. For others, such as Ian, a father of five who owed about \$10,000 in monetary sanctions debt, license suspension led to additional financial penalties and criminal legal encounters. Like others, Ian prioritized feeding his children and paying rent above paying his court debts, but was despondent about the unpaid debts.

[I]t just made me settle for the crappy jobs or even just cash jobs and just made me accept things like they were without trying to better myself at all . . . for so long I just drove anyways, and that's how I racked up all my tickets and stuff over them years. But I just say it's just real discouraging . . . You're stuck in a slump. Who wants to work? Well, a lot of people work just to pay bills and stuff, but who wants to work just to pay off a debt and you've still got rent and stuff to pay? *You still got kids to feed*, you still got rent to pay, and it's just like you got to pick between the two. *You're going to pick feeding your kids over paying a fine every day of the week. I promise you.*

Amy, a 37-year-old Native American woman raising three children was similarly unable to pay her legal debts because providing food and housing took priority. She shared that her monetary sanctions made it difficult to plan financially, as she did not know whether she would receive her tax return (in Minnesota tax returns are routinely intercepted to collect outstanding court debt). Amy had \$9,000 intercepted from her last return and still owed over \$1,000 more.

[I]t makes it harder for us to plan things we don't know if we're getting any money back, no money back, some money back. . . Out of our taxes . . . We can't afford on a day to day, week to week basis to pay on any of them things [LFOs] because we have bills to keep *roofs over our heads and food in our kid's mouth.*

Apart from prioritizing housing and food, like Amy does above, our participants who were caregivers for children reported difficulty affording other expenses such as gas and daycare. Many expressed they could not address their criminal legal debts while struggling to meet such basic needs. Ernest, a Black 29-year-old father of a five-year-old who owed “thousands” in court costs, explained that paying his LFOs would leave him with insufficient funds for food for his son and himself:

I haven't . . . I feel like . . . I mean, I won't be able to feed myself if I paid them [monetary sanctions], *and my child*. . . The cost of living is pretty high, food and . . . it's not enough money to give them fifty or twenty-five dollars even a month. Daycare is this much, or gas is this much, bus fare, rent. . .

For Ernest, like others, monetary sanctions loomed over his expectations for the future, adding to his stress:

I have all those different other things to worry about, it's just kind of added to that. . . now I'm getting my life and I'm cleaning up and getting things in order like I'm supposed to. Yeah, it brings stress, because I know I'm going to have to worry about it in the near future.

Such financial stress was pervasive. Like many, Jessica, a 43-year-old white mother, was already impoverished and experiencing housing insecurity when her debts were imposed. She described the added strain of \$13,000 in legal financial obligations, as she and her two children survived a cold Minnesota winter in a camper:

I had my two sons with me, and we were living in a camper in January and a storage unit in the winter We didn't have money to begin with We stole so we could have a place to live and gas in our truck, and food. It was a survival thing . . . Once we got all this extra stuff tacked on, payments, and fines, and probation fees, then it was just like, we didn't have the money to begin with. Now we're really screwed. And you have to do this stuff. Otherwise, you might as well just go sit in jail. Which a couple times I thought when my husband was in jail. I was like, you're better off where you're at because we're out in a camper out in the winter. I thought about it, just going and sitting my time and working it out that way instead of all that money.

Unlike Sally who was ordered to pay for her time in jail, Jessica believed she could have reduced her financial obligations if she spent time in jail. Both assessments are plausible, as people sentenced to monetary sanctions may encounter both “pay-for-stay” and “pay-or-stay” arrangements (Friedman and Pattillo 2019).

Another, related spillover effect we saw on parenting was in the decision to delay children due to financial precarity. When asked about her debts, Tanya, a 25-year-old biracial woman, described dire circumstances that delayed her family plans. “[I]t's kind of *held me back from having kids and having a family*,” Tanya said, “*how can I pay for the bills of a child if can't pay my own bills?*” Sheila, a 24-year-old Black woman, noted that paying her monetary sanctions would come at the expense of caring for her daughter:

I haven't started paying on it yet, but when I do it's gonna affect, like. . . *I have a daughter*, I have things I have to do, so it's like . . . It's gonna take money from other places that I just I can't afford . . .

Overall, we find that those responsible for children prioritize spending on, and attention to, meeting their children's basic needs, especially food, housing, and transportation, even as monetary sanction debts accumulate. Parents experience these debts as discouraging,

viewing the prospect of paying them off as insurmountable. This was due both to the large amounts they owed and to their own precarious circumstances.

Conclusions

We find the impact of monetary sanctions spans multiple generations. Participants often experienced their criminal legal debts as a cumulative sum, making few distinctions regarding the type of monetary sanctions they owed (whether probation fees, fines, or restitution), which undermines the distinct goals of such sanctions. Fines, intended as punishment, will likely go unpaid *or* be paid for by someone other than the individual (commonly the parents) upon whom they are levied. Fees, intended to recoup the costs of state-provided services, also have a low rate of repayment, especially among the low-income people most subject to them. The same is true of surcharges and even restitution, which cannot help victims when uncollected. Many interviewees viewed paying off their LFOs as an unattainable goal. Their monetary sanctions in the context of their economic deprivation was demoralizing, and many expressed despondency and despair regarding the past, present, and future. Such emotions may contribute to legal cynicism, system avoidance, and civic disengagement among debtors and their families. Research has shown that the imprisonment of a family member is consequential in shaping perceptions of government legitimacy and participation in civic engagement, and while focused on the imprisonment of a romantic partner (Lee, Porter, and Comfort 2014) it seems plausible that we might see similar, though possibly attenuated effects develop from insurmountable LFOs imposed on a parent or child.

We observed strained family relations and despondency across our sample, most prominently for those caring for minor children. For those assessed monetary sanctions, a parent's help was often accompanied by perceived stress and anger. These findings point to a possible tension between maintaining warm, supportive, intergenerational family ties and forcing adults to seek financial support from their loved ones. These burdens may also conflict with our participants' attempts to be parents, providers, and otherwise fulfill adult roles and responsibilities. This stress is consistent with studies showing how such transfers vary by race and class (Wiemers and Park 2021) and Swartz's (2008) suggestion that parental assistance is conditional on both the purpose of the help (in this case, the costs assessed in a legal proceeding) and adherence to parental and societal behavioral expectations. This stress may be heightened by the limited resources of both parents and their indebted adult children.

Our findings in this regard are consistent with the observations of Boches et al. (2022); that providing assistance with LFOs created onerous burdens on parents with limited means. Our findings similarly align with seminal work from Washington showing the severity of monetary sanctions for those who cannot afford to pay them (Harris 2016) and new work in the field, such as Giuffre's (2023) work examining how relationships, especially with former or current intimate partners, are structured around the receipt of and/or nonrepayment of financial assistance, but we are less concerned with how our participants navigate or experience their relationships and more concerned with how LFOs may impact those intergenerationally connected to our participants.

That our findings from Minnesota are congruent with those observed in the West (Harris 2016) and Southern states (Boches et al. 2022; Giuffre 2023) is an important contribution – illustrating how even in a Midwestern state with a comparatively lenient approach to financial penalties (Harris et al. 2017) these spillover burdens are pervasive.

Beyond validating, replicating, and geographically diversifying prior work, however, our analysis revealed an emotional pattern, particularly among fathers providing support to adult daughters: anger. This finding, if replicated, adds an emotional component to the extant literature on intergenerational transfers involving monetary sanctions. We posit that this anger may arise from the stigmatized nature of this type of intergenerational exchange. It also adds nuance as a gendered pattern of intergenerational exchange. Unlike studies that focused on maternal support (Boches et al. 2022; DeVuono-Powell S et al. 2015; Page 2022) we observed both fathers and mothers providing financial support to adult children in our sample, although the greatest financial strains seemed to fall on mothers. These findings show how direct effects on people with monetary sanctions alongside spillover effects on their family members across generations may contribute to mental/emotional health disparities that we know are prevalent among those with racialized legal statuses (Asad and Clair 2018).

Unexpectedly, we observed little difference between men and women in terms of receiving support or experiencing strain. We speculate this may be due to the especially stigmatized nature of criminal conviction for women (e.g., Larson et al. 2022). It is perhaps noteworthy that a separate Minnesota study also failed to detect strong gender differences in intergenerational financial exchange, though it did observe gender differences in receipt of housing support (Swartz et al. 2011).

We note that we did not speak directly with parents who helped adult children pay monetary sanctions. We therefore cannot determine whether and how these parents would characterize their own emotions. That is, we cannot be sure whether parents who helped their children financially were angry about the choices their children had made, the criminal legal system imposing monetary sanctions, or their inability to provide their children with support. A subsequent investigation of these questions could offer an important addition to this literature. Still, the fact that our adult interviewees consistently attributed parental anger and strain to the payment of monetary sanctions is a new and notable finding. Another limitation of our study is the relatively small number of racial minorities in our sample. Future research should investigate how both race, gender, and their intersections may shape the intergenerational consequences of monetary sanctions with attention to those from demographic groups known to be disparately impacted by the criminal legal system such as Native American women or Black men.

This study also highlights the potential impacts of monetary sanctions on parents' ability to support their children. LFOs may lead to material hardship, emotional distress, and despair (DeVuono-Powell S et al. 2015). These sanctions disproportionately affect disadvantaged families, echoing the effects of parental incarceration (Wakefield and Wildeman 2013). If paid, the financial burden reduces resources for children's basic needs, which like parental incarceration may result in consequences such as hunger, housing instability, and inadequate clothing (Curry et al. 2019; Turney, Schnittker, and Wildeman 2012). Even in less severe situations, if a parent's driver's license is suspended due to unpaid monetary sanctions, this may limit children's access to school, activities, and social events. Monetary sanctions likely compound existing challenges for families, affecting both parents and children in multiple ways. Perhaps most troubling, however, are the emotional consequences we observed. Our study reveals that parents may feel so discouraged and disheartened by their debts and circumstances that they may give up on trying to provide

for their children. Beyond parents, further research might explore the consequences upon siblings, cousins, and extended kin networks. The pervasiveness of this theme and its frequency in the context of discussing parenting, was an unexpected but strong pattern in our analysis.

In sum, this research expands the literature on the reverberations of punishment to consider the intergenerational toll of monetary sanctions. Given that punishment is distributed unequally across racialized, classed, and gendered lines, it seems plausible that the imposition of monetary sanctions on multiple family members simultaneously, or on the same family members at different points throughout the life course, may compound or amplify the dynamics observed in our study, an important direction for future scholarship. Much scholarship on the consequences of punishment has focused on material and economic impacts, with growing attention to health and social and civic integration. Our work here suggests that researchers think more seriously about emotional consequences, in line with broader calls for greater attention to the importance of emotion in the field of sociology (Bonilla-Silva 2019; Thoits 1989). We urge subsequent studies on the collateral consequences and spillover effects of the penal system to further expand knowledge in this arena. Although they are the most common punishment imposed (Harris 2016), little is known about their broader impact (Boches et al. 2022). We have shown here how such stigmatized financial transfers may shape the relationships and the resources available to both the parents and children of those subject to such debt.

Notes

1. Notably, those conducting this research on the harms of incarceration operate on the assumption that policies that result in a low-level sanction, such as a ticket, for a criminal legal encounter would be considered “family-friendly” (Lee and Wildeman 2021).
2. For more context, Appendix A provides descriptive quantitative detail using Minnesota administrative court data, including calculated mean monetary sanction debt amounts stratified by race and age groups, and details on the percentage of persons unable to pay their court debts within 90 days by offense type.
3. “Probation” here refers to the fee Lisa is obligated to pay for the service of probation, while restitution is payment intended to compensate the victim of her crime (Martin et al. 2018; Page and Soss 2021).
4. A “blow machine” is an alcohol breathalyzer that people convicted of certain crimes must have to retain driving privileges and/or remain out of jail. It is unclear whether Sharon is referencing the alcohol-testing electronic home monitoring which can cost \$16–\$19/day (Warkentin 2022) or an ignition interlock device with installation costs of \$70–150 and monthly calibration fees of \$60–\$100 (Smart Start 2020).

Acknowledgments

The authors are grateful to Chloe Hendrix for her invaluable research assistance on this project. They also want to thank Kristen Lee, Allison Dwyer Emory, Erin Hatton, and other members of the Crime, Law, and Justice Work-in-Progress Group at the University at Buffalo, SUNY for their feedback and comments on earlier drafts of this manuscript.

Disclosure statement

No potential conflict of interest was reported by the author(s).

Funding

The work was supported by the Laura and John Arnold Foundation. “Multi-state Study of Monetary Sanctions.” Alexes Harris (PI).

Notes on contributors

Veronica L. Horowitz is an Assistant Professor of Sociology at the University at Buffalo, SUNY. Her research focuses broadly on American criminal punishment with emphases on gender, debt, mercy, and imprisonment.

Ryan P. Larson is an Assistant Professor of Criminology at Hamline University. He studies the complex relationships between crime, punishment, and stratification with an emphasis on quantitative methodologies.

Robert Stewart is an Assistant Professor of Criminology and Criminal Justice at the University of Maryland. He studies the social, political, and collateral consequences of criminal legal involvement.

Christopher Uggen is Regents Professor in Sociology, Law, and Public Affairs at the University of Minnesota. Chris studies crime, law, and inequality, firm in the belief that sound research can help build a more just and peaceful world. Current projects examine voting rights, sentencing, reentry Scandinavian justice, guns, and monetary sanctions.

ORCID

Veronica L. Horowitz  <http://orcid.org/0000-0001-6838-4627>

References

- Asad AL and Clair M. 2018. “Racialized Legal Status As a Social Determinant of Health.” *Social Science & Medicine* 199:19–28. doi:10.1016/j.socscimed.2017.03.010.
- Bea MD and Yi Y. 2019. “Leaving the Financial Nest: Connecting Young Adults’ Financial Independence to Financial Security.” *Journal of Marriage and Family* 81(2):397–414. doi:10.1111/jomf.12553.
- Blau PM and Duncan OD. (1967). *The American Occupational Structure*. ERIC. Epub ahead of print 1967.
- Boches DJ, Martin BT, Giuffre A, Sanchez, A., Sutherland, A L., Shannon, Sarah K.S. 2022. “Monetary Sanctions and Symbiotic Harms.” *RSF: The Russell Sage Foundation Journal of the Social Sciences* 8 (2):98–115. doi:10.7758/RSF.2022.8.2.05.
- Bonilla-Silva E. 2019. “Feeling Race: Theorizing the Racial Economy of Emotions.” *American Sociological Review* 84(1):1–25. doi:10.1177/0003122418816958.
- Brayne S. 2014. “Surveillance and System Avoidance: Criminal Justice Contact and Institutional Attachment.” *American Sociological Review* 79(3):367–91. doi:10.1177/0003122414530398.
- Burton, L. 2007. “Childhood Adultification in Economically Disadvantaged Families: A Conceptual Model*.” *Family Relations* 56(4):329–45. doi:10.1111/j.1741-3729.2007.00463.x.
- Chesney-Lind M and Mauer M. (2003). *Invisible Punishment: The Collateral Consequences of Mass Imprisonment*. New Press. December 23, 2023.

- Chetty R, Hendren N, Kline P, Saez, E., Turner, N. 2014. "Is the United States Still a Land of Opportunity? Recent Trends in Intergenerational Mobility." *American Economic Review* 104 (5):141–47. doi:[10.1257/aer.104.5.141](https://doi.org/10.1257/aer.104.5.141).
- Clark S and Kenney C. 2010. "Is the United States Experiencing a "Matrilineal Tilt?": Gender, Family Structures and Financial Transfers to Adult Children." *Social Forces* 88(4):1753–76. doi:[10.1353/sof.2010.0007](https://doi.org/10.1353/sof.2010.0007).
- Cochran JC, Siennick SE and Mears DP. 2018. "Social Exclusion and Parental Incarceration Impacts on Adolescents' Networks and School Engagement." *Journal of Marriage and Family* 80(2):478–98. doi:[10.1111/jomf.12464](https://doi.org/10.1111/jomf.12464).
- Comfort M. 2009. *Doing Time Together*. Chicago, IL: University of Chicago Press.
- Cook F. (2014). *The Burden of Criminal Justice Debt in Alabama: 2014 Participant Self-Report Survey, Jefferson County's Community Corrections Program*.
- Cross, C. J. 2018. "Extended Family Households Among Children in the United States: Differences by Race/Ethnicity and Socio-Economic Status." *Population Studies* 72(2):235–51. doi:[10.1080/00324728.2018.1468476](https://doi.org/10.1080/00324728.2018.1468476).
- Curry C, Horowitz V, Matonich J, Stock K. 2019. "Mass Parental Incarceration and Sentencing Reform in Minnesota." *Mitchell Hamline Law Review* 45:1341.
- DeVuo-Powell S, Schweidler C, Walters A Zohrabi A. 2015. Who Pays? The True Cost of Incarceration on Families. Pp. 221–43 in *Research Action Design*, Oakland, Calif: Ella Baker Center, Forward Together. July 23, 2021
- Ewald A and Uggen C. 2012. "The Collateral Effects of Imprisonment on Prisoners, Their Families, and Communities." Pp. 83–103 in, edited by Joan Petersilia and Kevin R. Reitz, *The Oxford Handbook on Sentencing and Corrections*. New York, NY: Oxford University Press.
- Fernandes AD, Cadigan M, Edwards F, Harris, A. 2019. "Monetary Sanctions: A Review of Revenue Generation, Legal Challenges, and Reform." *Annual Review of Law and Social Science* 15 (1):397–413. doi:[10.1146/annurev-lawsocsci-101518-042816](https://doi.org/10.1146/annurev-lawsocsci-101518-042816).
- Frase, R. S. 2019. "Forty Years of American Sentencing Guidelines: What Have We Learned?" *Crime and Justice* 48(1):79–135.
- Friedman and Pattillo. 2019. "Statutory Inequality: The Logics of Monetary Sanctions in State Law." *RSF: The Russell Sage Foundation Journal of the Social Sciences* 5(1):173. doi:[10.7758/rsf.2019.5.1.08](https://doi.org/10.7758/rsf.2019.5.1.08).
- Geller A and Franklin AW. 2014. "Paternal Incarceration and the Housing Security of Urban Mothers." *Journal of Marriage and Family* 76(2):411–27. doi:[10.1111/jomf.12098](https://doi.org/10.1111/jomf.12098).
- Giuffre A. 2023. "The Impact of Legal-Financial Obligations on Relationships with Family, Friends, and Acquaintances: A Qualitative Study of Community Supervised Men with Sexual and Nonsexual Offense Convictions." *Criminal Justice & Behavior* 50(5):747–65. doi:[10.1177/00938548231162083](https://doi.org/10.1177/00938548231162083).
- Gleicher L, and DeLong C. 2018. "The Cost of Justice: The Impact of Criminal Justice Financial Obligations on Individuals and Families." *Illinois Criminal Justice Information Authority*.
- Green KM, Ensminger ME, Robertson JA, Juon, H-S. 2006. "Impact of Adult Sons' Incarceration on African American Mothers' Psychological Distress." *Journal of Marriage and Family* 68(2):430–41. doi:[10.1111/j.1741-3737.2006.00262.x](https://doi.org/10.1111/j.1741-3737.2006.00262.x).
- Gueta K. 2018. "The Experience of Prisoners' Parents: A Meta-Synthesis of Qualitative Studies." *Family Process* 57(3):767–82. doi:[10.1111/famp.12312](https://doi.org/10.1111/famp.12312).
- Harris A. 2016. *A Pound of Flesh: Monetary Sanctions As Punishment for the Poor*. New York: Russell Sage Foundation.
- Harris A, Huebner B, Martin K, Pattillo M, Pettit B, Shannon S, Sykes B, Uggen C, Fernandes A. (2017). Monetary Sanctions in the Criminal Justice System. Epub ahead of print 2017.
- Harris A, Pattillo M and Sykes BL. 2022. "Studying the System of Monetary Sanctions." *RSF: The Russell Sage Foundation Journal of the Social Sciences* 8(2):1–33. doi:[10.7758/RSF.2022.8.1.01](https://doi.org/10.7758/RSF.2022.8.1.01).
- Harris A, Smith T and Obara E. 2019. "Justice "Cost points"." *Criminology & Public Policy* 18 (2):343–59. doi:[10.1111/1745-9133.12442](https://doi.org/10.1111/1745-9133.12442).
- Johnson EI and Easterling B. 2012. "Understanding Unique Effects of Parental Incarceration on Children: Challenges, Progress, and Recommendations." *Journal of Marriage and Family* 74 (2):342–56. doi:[10.1111/j.1741-3737.2012.00957.x](https://doi.org/10.1111/j.1741-3737.2012.00957.x).

- Kirk DS and Matsuda M. 2011. "Legal Cynicism, Collective Efficacy, and the Ecology of Arrest*." *Criminology* 49(2):443–72. doi:10.1111/j.1745-9125.2011.00226.x.
- Kirk DS and Wakefield S. 2018. "Collateral Consequences of Punishment: A Critical Review and Path Forward." *Annual Review of Criminology* 1(1):171–94. doi:10.1146/annurev-criminol-032317-092045.
- Larson R, Shannon S, Sojourner A, Uggen, C. 2022. "Felon History and Change in US Employment Rates." *Social Science Research* 103:102649. doi: 10.1016/j.ssresearch.2021.102649.
- Lee H, McCormick T, Hicken MT, Wildeman, C. 2015. "Racial Inequalities in Connectedness to Imprisoned Individuals in the United States." *Du Bois Review Social Science Research on Race* 12 (2):269–82. doi:10.1017/S1742058X15000065.
- Lee H, Porter LC and Comfort M. 2014. "Consequences of Family Member Incarceration: Impacts on Civic Participation and Perceptions of the Legitimacy and Fairness of Government." *The ANNALS of the American Academy of Political and Social Science* 651(1):44–73. doi:10.1177/0002716213502920.
- Lee H and Wildeman C. 2021. "Assessing Mass incarceration's Effects on Families." *Science* 374 (6565):277–81. doi:10.1126/science.abj7777.
- Leopold T and Schneider T. 2011. "Family Events and the Timing of Intergenerational Transfers." *Social Forces* 90(2):595–616. doi:10.1093/sf/sor030.
- Lofland J, Snow DA, Anderson L, Lofland LH. 2006. *Analyzing Social Settings: A Guide to Qualitative Observation and Analysis*. 4th ed. Belmont, CA:Wadsworth/Thomson Learning.
- Lye DN. 1996. "Adult Child–Parent Relationships." *Annual Review of Sociology* 22(1):79–102. doi:10.1146/annurev.soc.22.1.79.
- Martin KD. 2020. "The Plurality of Perspectives on Monetary Sanctions": An Introductory Essay." *Sociological Perspectives* 63(6):901–20. doi:10.1177/0731121420970676.
- Martin KD, Sykes BL, Shannon S, Edwards, F, Harris, A. 2018. "Monetary Sanctions: Legal Financial Obligations in US Systems of Justice." *Annual Review of Criminology* 1(1):471–95. doi:10.1146/annurev-criminol-032317-091915.
- Mitnik PA, Bryant V and Weber M. 2019. "The Intergenerational Transmission of Family-Income Advantages in the United States." *Sociological Science* 6:380–415. doi:10.15195/v6.a15.
- Mueller-Smith M, Finlay K, Gross M, Lieberman C and Luh E. forthcoming. "The Impact of Criminal Financial Sanctions: A Multi-State Analysis of Survey and Administrative Data." *American Economic Review: Insights*.
- Napolitano L. 2015. "I'm Not Going to Leave Her High and Dry": Young Adult Support to Parents During the Transition to Adulthood." *The Sociological Quarterly* 56(2):329–54. doi:10.1111/tsq.12088.
- O'Connor A. 2009. *Poverty Knowledge: Social Science, Social Policy, and the Poor in Twentieth-Century US History*. Princeton, NJ: Princeton University Press.
- O'Malley P. 2013. "Monetized Justice: Money and Punishment in Consumer Societies." Pp. 375–390 in *The SAGE Handbook of Punishment and Society*, edited by Jonathan Simon and Richard Sparks. Sage Publications London: Epub ahead of print 2013.
- Page J. (2022). "How—And Why—The Bail Bond Industry Targets Women. In: *Gender Policy Report*." <https://genderpolicyreport.umn.edu/bail-bond-industry/>. February 10, 2022.
- Page J, Piehowski V and Soss J. 2019. "A Debt of Care: Commercial Bail and the Gendered Logic of Criminal Justice Predation." *RSF: The Russell Sage Foundation Journal of the Social Sciences* 5 (1):150–72. doi:10.7758/rsf.2019.5.1.07.
- Page J and Soss J. 2021. "The Predatory Dimensions of Criminal Justice." *Science* 374(6565):291–94. doi:10.1126/science.abj7782.
- Phelps MS. 2017. "Mass Probation: Toward a More Robust Theory of State Variation in Punishment." *Punishment & Society* 19(1):53–73. doi:10.1177/1462474516649174.
- Poehlmann J. 2005. "Children's Family Environments and Intellectual Outcomes During Maternal Incarceration." *Journal of Marriage and Family* 67(5):1275–85. doi:10.1111/j.1741-3737.2005.00216.x.
- Richards L. 2009. *Handling Qualitative Data: A Practical Guide*. London: SAGE Publications.
- Roksa J. 2019. "Intergenerational Exchange of Support in Low-Income Families: Understanding Resource Dilution and Increased Contribution." *Journal of Marriage and Family* 81(3):601–15. doi:10.1111/jomf.12558.

- Shannon S, Huebner BM, Harris A, Martin, K., Patillo, M., Pettit, B., Sykes, B., Uggen, C. 2020. "The Broad Scope and Variation of Monetary Sanctions: Evidence from Eight States." *UCLA Criminal Justice Law Review* 4 (1). doi:10.21428/cb6ab371.041cfb4e.
- Sharkey P. 2008. "The Intergenerational Transmission of Context." *The American Journal of Sociology* 113(4):931–69. doi:10.1086/522804.
- Sirois C. 2020. "The Strain of Sons' Incarceration on Mothers' Health." *Social Science & Medicine* 264:113264. doi:10.1016/j.socscimed.2020.113264.
- Sironi M and Furstenberg FF. 2012. "Trends in the Economic Independence of Young Adults in the United States: 1973–2007." *Population and Development Review* 38(4):609–30. doi:10.1111/j.1728-4457.2012.00529.x.
- Smart Start (2020) How Much Does an Ignition Interlock Device Cost? Smart Start. Retrieved October 28, 2022 (<https://www.smartstartinc.com/blog/ignition-interlock-cost/>).
- Smits A, Van Gaalen RI and Mulder CH. 2010. "Parent–Child Coresidence: Who Moves in with Whom and for Whose Needs?" *Journal of Marriage & Family* 72(4):1022–33. doi:10.1111/j.1741-3737.2010.00746.x.
- Spencer-Suarez K and Martin KD. 2017. "Understanding the Experience of Criminal Justice Debt." *The Fortune News* L:23.
- Stack, C. B. 1997. *All Our Kin: Strategies for Survival in a Black Community*. New York, NY: Harper & Row.
- Swartz TT. 2008. "Family Capital and the Invisible Transfer of Privilege: Intergenerational Support and Social Class in Early Adulthood." *New Directions for Child and Adolescent Development* 2008 (119):11–24. doi:10.1002/cd.206.
- Swartz TT. 2009. "Intergenerational Family Relations in Adulthood: Patterns, Variations, and Implications in the Contemporary United States." *Annual Review of Sociology* 35(1):191–212. doi:10.1146/annurev.soc.34.040507.134615.
- Swartz TT, Kim M, Uno M, Mortimer, J., O'Brien, K B. 2011. "Safety Nets and Scaffolds: Parental Support in the Transition to Adulthood." *Journal of Marriage and Family* 73(2):414–29. doi:10.1111/j.1741-3737.2010.00815.x.
- Thoits PA. 1989. "The Sociology of Emotions." *Annual Review of Sociology* 15(1):317–42. doi:10.1146/annurev.so.15.080189.001533.
- Turney K, Schnittker J and Wildeman C. 2012. "Those They Leave Behind: Paternal Incarceration and Maternal Instrumental Support." *Journal of Marriage and Family* 74(5):1149–65. doi:10.1111/j.1741-3737.2012.00998.x.
- Turney K and Sugie NF. 2021. "Connecting Models of Family Stress to Inequality: Parental Arrest and Family Life." *Journal of Marriage and Family* 83(1):102–18. doi:10.1111/jomf.12717.
- Van Gaalen RI and Dykstra PA. 2006. "Solidarity and Conflict Between Adult Children and Parents: A Latent Class Analysis." *Journal of Marriage and Family* 68(4):947–60. doi:10.1111/j.1741-3737.2006.00306.x.
- Wakefield S and Uggen C. 2010. "Incarceration and Stratification." *Annual Review of Sociology* 36 (1):387–406. doi:10.1146/annurev.soc.012809.102551.
- Wakefield S and Wildeman C. 2013. *Children of the Prison Boom: Mass Incarceration and the Future of American Inequality*. Oxford, UK: Oxford University Press.
- Warkentin D. 2022. *Anoka County, MN - Official Website | Official Website*. Human Services Division, 1 May. Anoka County: Community Corrections. Retrieved October 28, 2022 <https://www.anokacountymn.gov/DocumentCenter/View/30165/2022-Community-Corrections-Fee-Schedule—UPDATED-5-1-22>.
- Wiemers EE and Park SS. 2021. Chapter 13 - Intergenerational Transfers of Time and Money Over the Life Course. pp. 201–20 in *Handbook of Aging and the Social Sciences* 9th ed., edited by Ferraro KF and Carr D. Handbooks of Aging. Academic Press. <https://www.sciencedirect.com/science/article/pii/B9780128159705000139> November 11, 2021.
- Yi Y. 2023. "Racial Inequality in the Prevalence, Degree, Extension, and Permeation of Incarceration in Family Life." *Demography* 60(1):15–40. doi:10.1215/00703370-10419487.

Copyright of Sociological Quarterly is the property of Taylor & Francis Ltd and its content may not be copied or emailed to multiple sites or posted to a listserv without the copyright holder's express written permission. However, users may print, download, or email articles for individual use.